

FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK
AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF New York

Index No. 850143/2024

U.S. Bank Trust Company

Plaintiff,

-against-

Sugar Hill 473 LLC

Defendant.

MORTGAGED PROPERTY:

453 West 140th Street

New York, N.Y. 10031

COUNTY: New York

SBL #: B#2057 L#138

Sale Date: 5.12.26

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: \$ 2,648,459.02

2. Adjusted Judgment Amount (Upset Price): \$ 2,148,726.00

(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)

3. Sale Price: \$ 2,200,000.00

(To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)

4. Surplus Amount (enter \$0.00 if no surplus) \$ TBD

**If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.

Referee's TOTAL compensation awarded/fees
earned in this matter: \$ _____

Referee Name: Roberta Ellen Ashkin Esq. Telephone: 646.779.8520

Address: 400 East 70th Street, New York, N.Y. 10021

Email: _____

Signature/Date: _____

*If plaintiff is also the purchaser, complete both B. and C.

B. To be completed by Plaintiff's Rep.

Name: Terence Gee

Address: 144-36 78th Avenue
Flushing, N.Y. 11367

Telephone: 917.324.2033

Email: _____

Signature/Date: [Signature] 5.12.26

C. To Be Completed by Purchaser

Name: Craig Evan Diamond

Address: 3540 Bedford Ave
Brooklyn, N.Y. 11210

Telephone: 347.328.2506

Email: _____

Signature/Date: [Signature]